

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LOURDES GIL VEGA,

Petitioner

VS.

DARLENE P HORTON,

Respondent

) Case Number: FDI-22-797335

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TO MODIFY SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom to address whether the Court can or should require Respondent to sell her condo in Mexico or her boat to pay for her own and Petitioner's support. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties in this matter are Lourdes Gil Vega (Petitioner) and Darlene Horton (Respondent).
Petitioner is represented by attorney Peter Furst. Respondent is represented by attorney Vanessa Hierbaum.
- 2) In an Amended Statement of Decision filed 7/10/2024, following a multi-day trial, Judge Tong found Petitioner to be a putative spouse pursuant to Family Code section 2251(a)(1). Included in the Statement of Decision are various factual findings, including that the parties met in Cuba in February 2001 when Respondent was 39 and Petitioner was 38. Although Petitioner was nervous about immigrating to the United States because "she did not have any profession, did not know the language, and would not have any friends or family in San Francisco," Respondent promised to provide for everything in the parties' relationship. Petitioner immigrated to the United States

1 and Respondent “provided for everything throughout the relationship.” In January 2006,
2 Respondent gave birth to the parties’ son Sebastian. On 10/26/2026, the parties went to San
3 Francisco City Hall and registered as “San Francisco domestic partners.” Petitioner made
4 numerous requests to get married which were rebuffed by Respondent. On 9/10/2021,
5 Respondent emailed Petitioner stating they were not actually domestic partners because their
6 domestic partnership was never registered with the State of California, which was a surprise to
7 Petitioner. Petitioner filed a Petition for Dissolution 12/5/2022.

- 8 3) At the prior 10/8/2024 hearing (per the Findings and Order After Hearing filed 11/1/2024), the
9 Court ordered Respondent to pay Petitioner \$3,000 per month in non-guideline temporary spousal
10 support. In its order, the Court noted that Respondent is living in the marital residence, Petitioner
11 lives rent-free in an in-law unit adjacent to the marital residence, and Respondent has “significant
12 expenses.” The Court also ordered Respondent to pay Petitioner \$20,000 in need-based attorney’s
13 fees and costs, finding this to be “the maximum that Respondent can pay at this juncture while
14 still maintaining expenses.” The Court further denied Respondent’s request to issue a seek work
15 order against Petitioner, who the Court noted is “age 62, with no work history.”
- 16 4) Now on for hearing is Respondent’s Request for Order filed 1/8/2026 asking the Court to set
17 spousal support at \$0 and either impute Petitioner with full-time minimum wage income or order
18 Petitioner to seek work. Respondent states she was laid off from her job with Jaguar Health and
19 her last day of work was on 9/15/2025. Respondent states she will receive a severance from
20 9/16/2025 through 1/15/2026 equal to her monthly salary prior to termination.
- 21 5) On 1/8/2026, Respondent filed an Income and Expense Declaration. Respondent states she is 64
22 years old, has a college degree, and an MD. Respondent states she receives \$249 per month in
23 pension / retirement fund payments. Respondent states she has been the owner of Horton
24 Consulting (a biotech consulting business) “off and on for 17 years” but Respondent states her
25 current income from the business as well as her income from the business over the past 12
26 months is \$0. Respondent states she has \$6,000 in cash and \$7,000 in easily saleable investments.
27 Respondent states her real property holdings are “unknown.” Respondent states that she pays
28 approximately \$30,000 in expenses, which includes \$4,958 per month for mortgage, \$2,000 per
29 month for real property taxes, \$3,000 per month for Sebastian’s college tuition, \$2,876 per month

1 for life and accident insurance, \$1,468 per month for expenses related to her boat, \$3,600 per
2 month for expenses related to a condo in Mexico, and \$6,353 per month towards a total balance
3 of \$398,763 in credit card and other debt.

- 4 6) Respondent's 1/8/2026 Request for Order was previously set for hearing on 3/19/2026. One day
5 prior to that hearing date, the Court received an email from Petitioner's attorney Peter Furst
6 asking the Court to consider a Responsive Declaration that Mr. Furst stated he had e-filed a
7 Responsive Declaration that same day. Mr. Furst explained that the reason for the late submission
8 was due to illness. The Court continued the 3/19/2026 hearing date to 5/12/2026 to give the Court
9 additional time to review the late submission.
- 10 7) The Court notes that since Mr. Furst sent his email, Petitioner's Responsive Declaration has not
11 been filed and there is no indication in the e-filing transaction record that Petitioner's Responsive
12 Declaration was submitted for e-filing.
- 13 8) On 5/5/2026, Respondent filed a Reply Declaration. Respondent references Petitioner's
14 Responsive Declaration (and thus it appears Respondent received and reviewed Petitioner's
15 Responsive Declaration). Respondent states that exhibits attached to Petitioner's Responsive
16 Declaration were stolen from her personal belongings and contain passwords and confidential
17 information from private investments that Respondent held confidentially. Respondent argues
18 that not a single asset Petitioner describes in her Responsive Declaration provides Petitioner with
19 meaningful liquidity or ability to pay the current support order. Respondent attached to her Reply
20 Declaration a "spreadsheet summarizing the accounts and assets Petitioner addresses in her
21 Response, with my commentary on each." Respondent states Petitioner asserts that Respondent
22 engineered her own firing as evidenced by a Performance Improvement Plan that Respondent was
23 placed on. Respondent states, "The documents Lourdes stole include only partial records related
24 to the PIP...The PIP was part of a pattern the company employed against multiple executives it
25 sought to terminate cheaply. I am aware of this because Jaguar's CEO previously asked me to
26 place one of my own top-performing employees on a PIP without justifiable cause, which I
27 refused to carry out. I subsequently became the target of the same unethical conduct. I did not
28 choose to leave my employment, and I would never voluntarily sacrifice my professional standing
29 and ability to meet my obligations to make a litigation tactic more viable." Respondent also

1 references a request by Petitioner that Respondent be ordered to seek work, and Respondent
2 states that any seek work order should apply equally to Petitioner. Respondent also asserts that
3 Petitioner and attorney Peter Furst have been provided, with supporting evidence, detailed
4 responses to many of the very allegations now repeated in Petitioner's Responsive Declaration,
5 and that Petitioner's raising these claims now is sanctionable conduct. Respondent attached as
6 Exhibit G an updated Schedule of Assets and Debts signed by Respondent on 5/5/2026 which
7 lists the following assets and debts. The Court notes that Respondent states that every single asset
8 listed in the Schedule of Assets and Debts is Respondent's separate property.

- 9 a. 850 De Haro Street in San Francisco (estimated value \$2.5 million, mortgage of
10 approximately \$1 million)
- 11 b. Condo in Mexico (estimated value \$880,000, no mortgage)
- 12 c. Piano, furniture and sound system, tools, exercise equipment, etc. (value unknown)
- 13 d. Park West Artwork (\$15,000)
- 14 e. Jewelry (\$1,000)
- 15 f. Lexus (\$3,000)
- 16 g. Honda (\$8,000)
- 17 h. Boat (\$30,000, but value would be \$70,000 if Respondent pays \$15,000 in repairs)
- 18 i. Cash Savings (less than \$2,000)
- 19 j. 3 cancelled whole life insurance policies (no cash surrender value stated)
- 20 k. Investments (less than \$1,000)
- 21 l. Retirement accounts (less than \$2,500; Respondent liquidated her 401(k) and owes a loan
22 balance)
- 23 m. "Private investment" and "privately held shares" in various partnerships and other
24 business interests (\$200,000)

25 **B. Findings and Order**

- 26 1) Because Petitioner's Responsive Declaration was not actually filed, the Court will not consider it.
27 Additionally, Petitioner's Responsive Declaration was not actually filed, the Court will not make
28 an order addressing Respondent's claim that Petitioner attached confidential documents to her
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Responsive Declaration. However, the Court's jurisdiction to award sanctions related to Respondent's assertion that Petitioner stole documents from her is reserved.

- 2) **The parties are ordered to appear to address whether the Court can or should require Respondent to sell her condo in Mexico or her boat to pay for her own and Petitioner's support.**